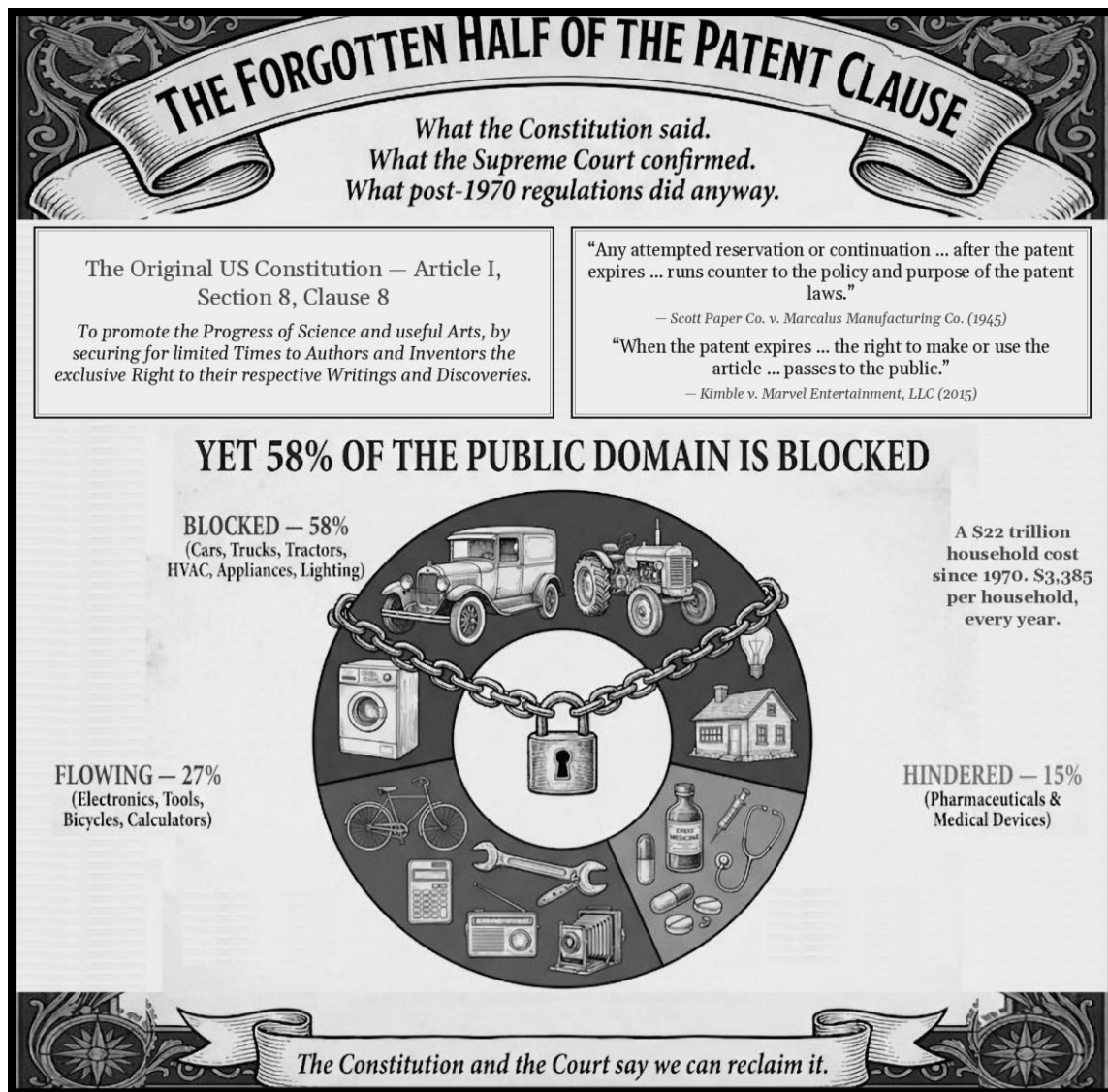


The Forgotten Half of the Patent Clause

How Federal Regulations Doubled the Cost of American Living and Rewrote the Constitution

(A solicitation seeking a confidential book review)



We follow each other on social media. That is why this reaches you. The work argues that a promise written into Article I, Section 8 has been quietly nullified since 1970, and that a single federal courtroom can restore it. No federal court has ever ruled on the question.

The claim, in one breath

Article I, Section 8, Clause 8 grants inventors an exclusive right for “limited Times.” When a patent expires, the right to make, copy, and improve the invention passes to the public; the brand name and logo stay with the original maker, and only the expired engineering design passes. Post-1970 federal energy and safety standards make it unlawful to build a faithful remake of a regulated patent-expired design, so the monopoly ends but the exclusion does not. That blockage covers an estimated 58 percent of expired-patent commerce. The remedy is not deregulation. It is a time-shift: a certified remake answers to the standards of its original platform year, while modern standards remain untouched for new designs. The argument rests on two constitutional prongs — the Patent Clause and the Takings Clause.

What the book is

The book is 533 pages, abridged from a prior two-volume set of 850 pages. This abridged edition is the full presentation, made concise, standing alone. Gord Magill, author of “End of the Road: Inside the War on Truckers,” has committed to the foreword; owner-operators are the strongest plaintiff category the work identifies. Every source carries a live link.

Sample Chapters in the book:

Why Nobody Noticed: How a Constitutional Violation Hides in Plain Sight	When Outsiders Advance Constitutional Law and Other Disciplines
The Patent Clause Prong: “Limited Times” as Constitutive Language	The Takings Clause Prong: Property the Government Cannot Cancel for Free
The Environmental Question: Why Restoring the Patent Bargain Does Not Unleash 1970s Emissions	The Trucker’s Burden: A Constitutional Brief for the American Cab
Why Wealthy Nations Break the Patent Promise That Poor Nations Honor	When the Bargain Worked: Pre-1900 American Prosperity
Reason the Constitutional Argument Yourself: The Open-Book Examination	What You Can Do: A Citizen’s Playbook
The Filable Case: Why 2026 and Not Before	Objections Considered

How to get it — just reply

There is no book link printed here, and that is deliberate. Send me a line saying you are interested and I will reply with a private link to the condensed edition as a PDF; you can be reading it the same day. If you would rather hold it in print, ask and a bound copy can arrive in the mail — print-on-demand, so allow about three weeks. The full two volumes are available on the same request, in print, PDF, or EPUB.

What I ask in return is one promise. This is an Author’s Review Copy, not a published book. The link is confidential — please do not post it on social media, a website, or any public medium, and do not re-distribute the PDF. A freely circulating condensed edition could read to a publisher as competing with the book itself. If a colleague should see it, tell me and I will send them their own link.

Three public addresses, if you would rather look before you answer

https://marti124.github.io/Patent_Exam

Three chapters in full, the Brief, an Invitation to Review, and the open-book examination materials — primary sources, prompts, and scoring sheet — so you can put the question to an AI model and judge the reasoning yourself, as eleven engines did, including the legal research system OpenCase.

https://marti124.github.io/Patent_EndNotes

The endnotes, glossary, and key-terms apparatus — roughly 190 pages, every citation with a live link. It includes Appendix A, the SCOTUS Case Master Table: every Supreme Court case cited across the two volumes, sorted by decision year, each described for what it actually holds. Inclusion is not endorsement — the cases that cut against the argument are in there too, and say so.

https://marti124.github.io/Patent_Letters

Letter and packet generators for the Make American Living Affordable campaign, each aimed at a group with a concrete stake: sheriffs, governors and attorneys general, trucking and farm associations, health and lighting advocates, tribal leadership, public-domain scholars.

What is being asked

A few sentences from you would help this work reach a publisher. Say whatever moves you: that the argument deserves a public hearing, that a question no federal court has ever ruled on deserves an answer, or simply that you want remanufacturing back, by the courts or by Congress. No legal opinion is expected — enthusiasm for the subject counts for as much. Please add a half-line about who you are: trucker, attorney, farmer, sheriff, engineer. It shows a publisher who this argument reaches. If it suits someone else better, share this handout with them.

Roleigh Martin · Northern Kentucky · RoleighMartin@proton.me · x.com/RoleighMartin/articles

To talk it over by phone, text first at 952-905-0822. Eastern time. Email or an X message is also the place to ask for the link or the book. Overleaf: the proposed remedy in a single diagram.

The Desired SCOTUS Ruling Time-Shifts Regulations for Remanufacturing; the Commons Opens

THE PRINCIPLE

The regulatory standards for the original invention should be the same for a patent-expired remake — equal justice (standing) under the Patent Clause. A remake can happen if it need only meet the original standards.

THE PROBLEM TODAY

Current standards have ratcheted up and make it impossible to remanufacture the expired-patent item. The remedy time-shifts the rule back to the original's standard — the public's remake need meet only what the original met.

THE REGULATORY STANDARD

A grandfather exemption, earned by independent engineering certification, time-shifts the remanufactured design to the standards in force when its original was certified.

THE PATENT TERM

the exclusive right, granted for a limited Time

the patent still ends on schedule — it was never what blocked the public

THE MANUFACTURER'S PROTECTION

from low-cost remanufactured competition

THE CERTIFICATION GATE

A remanufactured patent-expired design passes the gate only if it contains nothing still under patent and meets the federal safety and emissions standards of its certified platform year — confirmed by independent engineering certification.

the patent-expired invention

patent filing

Patent expires — the “limited Time” ends

this protection ends.

Low-cost remanufactured competition is lawful again.

THE EXPIRED-PATENT COMMONS

Now open — the public may make, copy, improve, and remanufacture.

Held to the standards the original met — only the brand name and logo stay with the original maker.

the wall still holds for newly designed vehicles — modern rules are untouched

time →

Simplified: the patent is shown expiring in the present, with remanufacturing desired now. The standard's applicability is time-shifted to the original's certified year — the wall stands, but for the remake it speaks the standards of that year.